COMMERCIAL AGREEMENT - RECORD 017

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-017

1. Recitals and defined terms

This Controls Integration Reseller Agreement is made between Helioscope Robotics, Inc. as Provider and Quarry Point Automation Ltd as Reseller, a controls integration business organised in Alberta, contracting through Quarry Point Automation Ltd. Quarry Point and the Provider have agreed that terms defined in the recitals and in Exhibit A carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Quarry Point Automation Ltd has notified the Provider that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As a remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 1 site in controls integration, Quarry Point takes this obligation at site level rather than centrally under the Controls Integration Reseller Agreement. Nothing in the Quarry Point negotiation history qualifies Article 20 (Notices), and a reviewer should not read the pre-signature drafts as doing so.

Quarry Point Automation Ltd has notified the Provider that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As it bites, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Quarry Point's 1 site, since a controls integration operator administers the Controls Integration Reseller Agreement where the units work. The Quarry Point relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

On the terms of Schedule 5, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. In application, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In controls integration the burden of this sits with operations, and Quarry Point discharges it across 1 site under the Controls Integration Reseller Agreement. Where Quarry Point has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

The Provider has undertaken to Quarry Point that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In terms of consequence, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Operating 1 site, Quarry Point applies the Controls Integration Reseller Agreement at the point of delivery, as controls integration practice requires. Because Quarry Point operates in controls integration, the practical burden of this clause falls on its Alberta operation, and Article 4 (Orders and Quantities) governs how it is measured.

Quarry Point reseller agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Quarry Point milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
QUA-M001	full acceptance	2024-03	20	seasonal freeze	$191,400	invoiceable on certification
QUA-M002	network readiness certified	2026-03	25	no delay	$24,853	no payment attached
QUA-M003	units delivered	2024-08	10	facility readiness	$105,175	invoiceable on certification
QUA-M004	full acceptance	2024-07	20	network provisioning	$113,537	invoiceable on certification
QUA-M005	pilot acceptance	2024-02	7	labour agreement	$31,145	invoiceable on acceptance
QUA-M006	full acceptance	2026-12	12	no delay	$261,633	invoiceable on acceptance
QUA-M007	warranty commencement	2024-03	21	no delay	$165,547	invoiceable on certification
QUA-M008	network readiness certified	2025-05	28	facility readiness	$150,831	no payment attached

Quarry Point milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
QUA-M009	full acceptance	2025-11	29	labour agreement	$207,670	no payment attached
QUA-M010	site survey complete	2024-05	27	no delay	$136,007	invoiceable on certification
QUA-M011	network readiness certified	2026-09	31	no delay	$142,759	invoiceable on acceptance
QUA-M012	full acceptance	2026-06	23	Customer IT dependency	$37,961	no payment attached
QUA-M013	full acceptance	2025-03	17	network provisioning	$221,035	invoiceable on certification
QUA-M014	units delivered	2025-08	27	Customer IT dependency	$153,322	invoiceable on certification
QUA-M015	steady-state handover	2024-11	8	labour agreement	$220,705	invoiceable on acceptance
QUA-M016	units delivered	2025-07	4	labour agreement	$250,744	no payment attached
QUA-M017	site survey complete	2026-02	6	labour agreement	$157,901	no payment attached
QUA-M018	integration test passed	2024-05	32	network provisioning	$176,363	no payment attached
QUA-M019	warranty commencement	2025-07	12	facility readiness	$216,816	invoiceable on acceptance
QUA-M020	pilot acceptance	2024-12	2	network provisioning	$15,988	invoiceable on acceptance
QUA-M021	units delivered	2025-11	28	facility readiness	$247,838	no payment attached
QUA-M022	steady-state handover	2026-11	23	Customer IT dependency	$58,678	invoiceable on certification
QUA-M023	full acceptance	2025-07	22	Customer IT dependency	$56,565	no payment attached
QUA-M024	warranty commencement	2026-11	20	network provisioning	$181,877	invoiceable on certification
QUA-M025	network readiness certified	2025-06	27	Customer IT dependency	$56,969	invoiceable on certification
QUA-M026	network readiness certified	2024-04	24	network provisioning	$162,653	invoiceable on certification
QUA-M027	pilot acceptance	2025-05	1	network provisioning	$187,667	invoiceable on acceptance
QUA-M028	warranty commencement	2024-04	17	facility readiness	$51,997	no payment attached
QUA-M029	units delivered	2025-03	2	seasonal freeze	$41,639	invoiceable on acceptance
QUA-M030	units delivered	2025-06	30	Customer IT dependency	$207,073	invoiceable on certification
QUA-M031	warranty commencement	2025-04	28	facility readiness	$180,954	invoiceable on certification
QUA-M032	integration test passed	2025-02	26	labour agreement	$122,453	invoiceable on acceptance
QUA-M033	site survey complete	2024-01	13	no delay	$233,850	invoiceable on acceptance
QUA-M034	pilot acceptance	2025-06	1	seasonal freeze	$100,103	invoiceable on certification
QUA-M035	network readiness certified	2024-08	11	no delay	$72,432	invoiceable on acceptance
QUA-M036	full acceptance	2026-04	12	network provisioning	$122,645	invoiceable on acceptance
QUA-M037	warranty commencement	2024-06	10	facility readiness	$152,986	no payment attached
QUA-M038	warranty commencement	2024-05	23	facility readiness	$212,985	invoiceable on acceptance
QUA-M039	site survey complete	2026-06	27	facility readiness	$216,932	no payment attached
QUA-M040	warranty commencement	2025-07	8	labour agreement	$264,381	invoiceable on certification
QUA-M041	pilot acceptance	2026-10	1	Customer IT dependency	$242,916	invoiceable on acceptance
QUA-M042	site survey complete	2024-01	29	Customer IT dependency	$266,861	invoiceable on acceptance

Quarry Point milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
QUA-M043	pilot acceptance	2025-05	31	seasonal freeze	$220,207	no payment attached
QUA-M044	warranty commencement	2026-12	20	seasonal freeze	$220,889	invoiceable on certification
QUA-M045	units delivered	2024-05	14	network provisioning	$158,574	invoiceable on certification
QUA-M046	units delivered	2024-06	24	network provisioning	$258,062	invoiceable on acceptance
QUA-M047	warranty commencement	2025-04	6	network provisioning	$144,268	no payment attached
QUA-M048	warranty commencement	2026-08	2	network provisioning	$264,509	no payment attached
QUA-M049	site survey complete	2025-09	4	network provisioning	$76,837	no payment attached
QUA-M050	pilot acceptance	2024-06	32	facility readiness	$129,414	invoiceable on certification
QUA-M051	units delivered	2024-02	6	no delay	$87,707	invoiceable on certification
QUA-M052	full acceptance	2026-09	28	no delay	$41,824	no payment attached
QUA-M053	units delivered	2024-07	13	labour agreement	$88,866	no payment attached
QUA-M054	full acceptance	2025-04	6	network provisioning	$206,987	invoiceable on acceptance
QUA-M055	site survey complete	2026-09	5	Customer IT dependency	$159,751	no payment attached
QUA-M056	network readiness certified	2026-03	22	network provisioning	$64,400	invoiceable on certification
QUA-M057	steady-state handover	2025-07	4	network provisioning	$29,724	no payment attached
QUA-M058	network readiness certified	2024-07	14	seasonal freeze	$81,699	invoiceable on certification
QUA-M059	network readiness certified	2024-07	32	Customer IT dependency	$129,403	invoiceable on acceptance
QUA-M060	site survey complete	2026-11	21	labour agreement	$56,264	no payment attached
QUA-M061	network readiness certified	2024-04	2	labour agreement	$230,738	no payment attached
QUA-M062	network readiness certified	2025-12	5	Customer IT dependency	$108,193	no payment attached
QUA-M063	network readiness certified	2024-09	33	Customer IT dependency	$151,294	invoiceable on acceptance
QUA-M064	full acceptance	2024-07	12	seasonal freeze	$122,578	invoiceable on certification
QUA-M065	units delivered	2024-04	15	labour agreement	$232,462	no payment attached
QUA-M066	steady-state handover	2025-08	31	Customer IT dependency	$19,269	no payment attached
QUA-M067	full acceptance	2024-01	9	Customer IT dependency	$77,817	invoiceable on acceptance
QUA-M068	steady-state handover	2026-08	19	Customer IT dependency	$50,050	invoiceable on acceptance
QUA-M069	network readiness certified	2024-03	21	Customer IT dependency	$71,144	invoiceable on certification
QUA-M070	network readiness certified	2024-03	21	seasonal freeze	$34,192	no payment attached
QUA-M071	pilot acceptance	2025-07	5	network provisioning	$158,406	invoiceable on acceptance
QUA-M072	warranty commencement	2025-01	16	network provisioning	$60,624	no payment attached
QUA-M073	full acceptance	2026-03	12	Customer IT dependency	$129,266	invoiceable on acceptance
QUA-M074	integration test passed	2024-02	3	labour agreement	$49,302	invoiceable on certification
QUA-M075	units delivered	2026-10	27	no delay	$112,428	invoiceable on certification
QUA-M076	pilot acceptance	2024-12	5	facility readiness	$141,234	invoiceable on certification

Quarry Point milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
QUA-M077	site survey complete	2024-11	30	no delay	$36,298	no payment attached
QUA-M078	warranty commencement	2025-09	4	no delay	$201,307	invoiceable on acceptance
QUA-M079	units delivered	2026-12	3	no delay	$17,728	invoiceable on certification
QUA-M080	warranty commencement	2026-05	on plan	Customer IT dependency	$44,213	invoiceable on certification
QUA-M081	steady-state handover	2026-10	on plan	seasonal freeze	$152,040	invoiceable on certification
QUA-M082	site survey complete	2026-10	3	seasonal freeze	$195,141	no payment attached
QUA-M083	units delivered	2026-09	10	no delay	$150,358	invoiceable on acceptance
QUA-M084	network readiness certified	2026-11	20	labour agreement	$92,098	invoiceable on acceptance
QUA-M085	steady-state handover	2025-08	2	labour agreement	$107,828	invoiceable on certification
QUA-M086	network readiness certified	2024-11	30	labour agreement	$35,951	no payment attached

2. Scope of supply and orders

Subject to Article 2 (Definitions), a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. By design, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Quarry Point has 1 site, and the Controls Integration Reseller Agreement treats each as a separate delivery point. Administration of this obligation for Quarry Point sits with the account team rather than with central contracts, and Article 17 (Transition Assistance) is where it is evidenced.

Quarry Point Automation Ltd undertakes that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. In substance, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. In controls integration the burden of this sits with operations, and Quarry Point discharges it across 1 site under the Controls Integration Reseller Agreement. The obligation as it applies to Quarry Point was tightened at signature, and Article 6 (Fees and Payment) carries the negotiated wording rather than the standard wording.

The Provider has undertaken to Quarry Point that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. By way of qualification, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Alberta is where Quarry Point runs controls integration operations across 1 site, and the Controls Integration Reseller Agreement follows that footprint. The obligation as it applies to Quarry Point was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

Article 8 (Acceptance) of the Controls Integration Reseller Agreement is to be construed so that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As to enforcement, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Running 1 site in controls integration, Quarry Point takes this obligation at site level rather than centrally under the Controls Integration Reseller Agreement. Administration of this obligation for Quarry Point sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

3. Delivery, title and risk

Subject to Article 9 (Customer Obligations), the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Materially, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Quarry Point treats the obligation as a site-level matter across its 1 site in Alberta, consistent with the Controls Integration Reseller

Agreement. Because Quarry Point operates in controls integration, the practical burden of this clause falls on its Alberta operation, and Article 11 (Data and Telemetry) governs how it is measured.

Quarry Point may require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. In application, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 1 site, Quarry Point applies the Controls Integration Reseller Agreement at the point of delivery, as controls integration practice requires. For a reseller of Quarry Point's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

The parties have recorded in Schedule 2 that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Quarry Point treats the obligation as a site-level matter across its 1 site in Alberta, consistent with the Controls Integration Reseller Agreement. The Quarry Point relationship is managed against Article 12 (Intellectual Property) at each quarterly review, and any variance is minuted there rather than in the Order.

The parties have recorded in Schedule 2 that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. As between them, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Quarry Point, a controls integration operator running 1 site out of Alberta, the point matters because the Controls Integration Reseller Agreement is administered site by site. For a reseller of Quarry Point's size the clause is unremarkable, but Article 20 (Notices) is drafted more tightly here than in the Provider's standard form.

Quarry Point reseller agreement - Exhibit C - Service Levels and Credit Ladder

Quarry Point service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
QUA-L001	throughput	94.4%	9% of monthly fee	6% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L002	throughput	93.8%	9% of monthly fee	15% of monthly fee	no exclusion	credit then termination right
QUA-L003	resolution time	91.1%	11% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
QUA-L004	throughput	92.0%	12% of monthly fee	30% of monthly fee	no exclusion	credit then termination right
QUA-L005	throughput	96.1%	6% of monthly fee	23% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L006	availability	93.1%	7% of monthly fee	19% of monthly fee	excluding force majeure	credit only
QUA-L007	resolution time	90.8%	5% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
QUA-L008	resolution time	95.5%	10% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only
QUA-L009	resolution time	98.7%	12% of monthly fee	7% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L010	throughput	96.4%	2% of monthly fee	28% of monthly fee	no exclusion	credit only
QUA-L011	response time	91.5%	1% of monthly fee	27% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L012	availability	92.8%	3% of monthly fee	17% of monthly fee	no exclusion	credit then termination right
QUA-L013	throughput	97.7%	4% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L014	throughput	91.8%	12% of monthly fee	29% of monthly fee	no exclusion	credit only
QUA-L015	response time	94.4%	12% of monthly fee	9% of monthly fee	excluding scheduled	credit only

Quarry Point service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
					maintenance	
QUA-L016	resolution time	95.1%	1% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit only
QUA-L017	resolution time	90.1%	9% of monthly fee	13% of monthly fee	no exclusion	credit only
QUA-L018	resolution time	92.3%	8% of monthly fee	30% of monthly fee	excluding scheduled maintenance	credit only
QUA-L019	resolution time	96.7%	7% of monthly fee	15% of monthly fee	no exclusion	credit only
QUA-L020	response time	98.0%	11% of monthly fee	17% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L021	availability	95.4%	5% of monthly fee	20% of monthly fee	excluding force majeure	credit then termination right
QUA-L022	availability	94.1%	5% of monthly fee	20% of monthly fee	no exclusion	credit then termination right
QUA-L023	response time	91.2%	4% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit only
QUA-L024	response time	93.0%	6% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L025	throughput	96.9%	6% of monthly fee	29% of monthly fee	excluding force majeure	credit only
QUA-L026	availability	91.5%	10% of monthly fee	5% of monthly fee	no exclusion	credit then termination right
QUA-L027	response time	98.8%	5% of monthly fee	22% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L028	resolution time	95.8%	11% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit only
QUA-L029	throughput	96.5%	5% of monthly fee	7% of monthly fee	no exclusion	credit only
QUA-L030	throughput	98.3%	1% of monthly fee	15% of monthly fee	no exclusion	credit only
QUA-L031	availability	93.4%	11% of monthly fee	19% of monthly fee	no exclusion	credit only
QUA-L032	availability	95.7%	10% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit only
QUA-L033	throughput	93.6%	8% of monthly fee	19% of monthly fee	excluding Customer-caused outage	credit only
QUA-L034	resolution time	97.6%	4% of monthly fee	30% of monthly fee	excluding Customer-caused outage	credit only
QUA-L035	response time	91.6%	2% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit only
QUA-L036	availability	92.7%	4% of monthly fee	20% of monthly fee	excluding force majeure	credit only
QUA-L037	throughput	94.8%	2% of monthly fee	15% of monthly fee	excluding force majeure	credit only
QUA-L038	response time	95.2%	1% of monthly fee	25% of monthly fee	excluding force majeure	credit then termination right
QUA-L039	throughput	98.0%	7% of monthly fee	8% of monthly fee	excluding force majeure	credit only
QUA-L040	availability	95.8%	6% of monthly fee	16% of monthly fee	excluding scheduled maintenance	credit only
QUA-L041	response time	97.5%	1% of monthly fee	17% of monthly fee	excluding Customer-caused outage	credit only
QUA-L042	response time	98.5%	4% of monthly fee	9% of monthly fee	excluding scheduled maintenance	credit only

Quarry Point service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
QUA-L043	availability	90.5%	2% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L044	availability	91.5%	10% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit only
QUA-L045	response time	92.0%	5% of monthly fee	8% of monthly fee	no exclusion	credit then termination right
QUA-L046	throughput	90.7%	6% of monthly fee	23% of monthly fee	no exclusion	credit only
QUA-L047	resolution time	95.9%	9% of monthly fee	18% of monthly fee	excluding force majeure	credit then termination right
QUA-L048	resolution time	96.1%	4% of monthly fee	20% of monthly fee	no exclusion	credit only
QUA-L049	response time	94.4%	6% of monthly fee	24% of monthly fee	excluding Customer-caused outage	credit only
QUA-L050	availability	91.0%	4% of monthly fee	6% of monthly fee	no exclusion	credit only
QUA-L051	resolution time	90.8%	1% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit only
QUA-L052	availability	91.5%	11% of monthly fee	5% of monthly fee	no exclusion	credit then termination right
QUA-L053	throughput	90.5%	2% of monthly fee	30% of monthly fee	no exclusion	credit then termination right
QUA-L054	throughput	91.8%	6% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L055	resolution time	91.4%	7% of monthly fee	26% of monthly fee	no exclusion	credit then termination right
QUA-L056	throughput	91.9%	9% of monthly fee	13% of monthly fee	excluding force majeure	credit only
QUA-L057	throughput	95.2%	10% of monthly fee	28% of monthly fee	excluding Customer-caused outage	credit only
QUA-L058	throughput	95.6%	2% of monthly fee	8% of monthly fee	excluding Customer-caused outage	credit only
QUA-L059	availability	97.1%	11% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L060	resolution time	95.6%	8% of monthly fee	12% of monthly fee	excluding force majeure	credit only
QUA-L061	availability	91.1%	12% of monthly fee	15% of monthly fee	excluding force majeure	credit only
QUA-L062	response time	91.0%	6% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
QUA-L063	resolution time	98.0%	9% of monthly fee	21% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L064	resolution time	98.8%	8% of monthly fee	5% of monthly fee	excluding Customer-caused outage	credit only
QUA-L065	availability	92.3%	2% of monthly fee	11% of monthly fee	excluding force majeure	credit only
QUA-L066	availability	95.0%	9% of monthly fee	29% of monthly fee	excluding force majeure	credit only
QUA-L067	throughput	96.0%	5% of monthly fee	13% of monthly fee	excluding scheduled maintenance	credit then termination right
QUA-L068	resolution time	96.0%	1% of monthly fee	7% of monthly fee	no exclusion	credit then termination right
QUA-L069	response time	93.7%	6% of monthly fee	20% of monthly fee	excluding force majeure	credit only
QUA-L070	availability	98.3%	1% of monthly fee	28% of monthly fee	no exclusion	credit then termination right
QUA-L071	response time	93.9%	2% of monthly	26% of monthly	excluding	credit only

Quarry Point service level	Measure	Commitment	Credit per breach	Monthly credit cap	Exclusion	Escalated remedy
			fee	fee	scheduled maintenance	
QUA-L072	response time	97.5%	4% of monthly fee	11% of monthly fee	excluding force majeure	credit then termination right
QUA-L073	response time	95.5%	10% of monthly fee	13% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L074	response time	98.8%	7% of monthly fee	10% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L075	resolution time	98.8%	11% of monthly fee	19% of monthly fee	excluding scheduled maintenance	credit only
QUA-L076	throughput	90.1%	5% of monthly fee	15% of monthly fee	excluding Customer-caused outage	credit then termination right
QUA-L077	resolution time	95.4%	6% of monthly fee	9% of monthly fee	excluding Customer-caused outage	credit only
QUA-L078	response time	98.0%	7% of monthly fee	21% of monthly fee	excluding force majeure	credit only
QUA-L079	availability	91.5%	6% of monthly fee	5% of monthly fee	no exclusion	credit only
QUA-L080	response time	90.1%	3% of monthly fee	27% of monthly fee	excluding Customer-caused outage	credit only

4. Fees, invoicing and escalation

Nothing in Schedule 3 entitles Quarry Point to assume that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. In point of remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Controls Integration Reseller Agreement reaches each of Quarry Point's 1 site separately, which is how a controls integration operator in Alberta administers it. Administration of this obligation for Quarry Point sits with the account team rather than with central contracts, and Article 18 (Assignment) is where it is evidenced.

The Provider has undertaken to Quarry Point that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Intended effect: an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Quarry Point has 1 site, and the Controls Integration Reseller Agreement treats each as a separate delivery point. Quarry Point has taken the point up once since signature; the correspondence is filed against Article 11 (Data and Telemetry) and did not result in an amendment.

Article 21 (Governing Law and Disputes) provides that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On the face of the clause, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Quarry Point treats the obligation as a site-level matter across its 1 site in Alberta, consistent with the Controls Integration Reseller Agreement. Nothing in the Quarry Point negotiation history qualifies Article 16 (Term and Termination), and a reviewer should not read the pre-signature drafts as doing so.

On the terms of Schedule 2, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As drafted, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Site count matters here: Quarry Point has 1 site, and the Controls Integration Reseller Agreement treats each as a separate delivery point. Administration of this obligation for Quarry Point sits with the account team rather than with central contracts, and Article 17 (Transition Assistance) is where it is evidenced.

5. Service levels and credits

Article 15 (Limitation of Liability) provides that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond

the term. Materially, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Quarry Point's 1 site, since a controls integration operator administers the Controls Integration Reseller Agreement where the units work. Because Quarry Point operates in controls integration, the practical burden of this clause falls on its Alberta operation, and Article 9 (Customer Obligations) governs how it is measured.

For the purposes of the Controls Integration Reseller Agreement, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the mechanics, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Running 1 site in controls integration, Quarry Point takes this obligation at site level rather than centrally under the Controls Integration Reseller Agreement. For a reseller of Quarry Point's size the clause is unremarkable, but Article 13 (Licences) is drafted more tightly here than in the Provider's standard form.

Quarry Point Automation Ltd has notified the Provider that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On the operative wording, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. 1 site in Alberta means Quarry Point applies the Controls Integration Reseller Agreement through its regional operations team rather than through head office. Because Quarry Point operates in controls integration, the practical burden of this clause falls on its Alberta operation, and Article 11 (Data and Telemetry) governs how it is measured.

Where Article 3 (Scope of Supply) applies, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. On the wording, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. This bites at Quarry Point's 1 site, since a controls integration operator administers the Controls Integration Reseller Agreement where the units work. For a reseller of Quarry Point's size the clause is unremarkable, but Article 4 (Orders and Quantities) is drafted more tightly here than in the Provider's standard form.

6. Acceptance and change control

Read with Exhibit A, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. By design, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 1 site in Alberta means Quarry Point applies the Controls Integration Reseller Agreement through its regional operations team rather than through head office. Nothing in the Quarry Point negotiation history qualifies Article 6 (Fees and Payment), and a reviewer should not read the pre-signature drafts as doing so.

Nothing in Exhibit B entitles Quarry Point to assume that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In terms of consequence, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In controls integration the burden of this sits with operations, and Quarry Point discharges it across 1 site under the Controls Integration Reseller Agreement. Administration of this obligation for Quarry Point sits with the account team rather than with central contracts, and Article 21 (Governing Law and Disputes) is where it is evidenced.

Quarry Point retains the right, notwithstanding Article 20 (Notices), to require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Negotiated position: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Quarry Point runs 1 site from Alberta in controls integration, so the Controls Integration Reseller Agreement is administered locally and this clause is applied per site. Where Quarry Point has raised a query the Provider has answered by reference to Article 17 (Transition Assistance), and the exchange is on the contract file.

On the terms of Exhibit A, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a matter of construction, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. In controls integration the burden of this sits with operations, and Quarry Point discharges it across 1 site under the Controls Integration Reseller

Agreement. The Quarry Point relationship is managed against Article 4 (Orders and Quantities) at each quarterly review, and any variance is minuted there rather than in the Order.

Quarry Point reseller agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Quarry Point price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
QUA-P0001	part 4722-J	gearbox	$1,745	24	50	dual sourced	no EOL commitment
QUA-P0002	part 3722-C	castor assembly	$1,892	6	600	dual sourced	last-time-buy notice 12 months
QUA-P0003	part 6435-L	controller board	$2,080	4	250	dual sourced	EOL notice 6 months
QUA-P0004	part 6066-F	drive unit	$1,582	15	200	dual sourced	EOL notice 6 months
QUA-P0005	part 2318-U	harness	$1,811	23	600	qualification in progress	EOL notice 6 months
QUA-P0006	part 6889-Y	optical sensor	$469	9	500	dual sourced	last-time-buy notice 12 months
QUA-P0007	part 8265-W	harness	$2,241	24	100	single source	last-time-buy notice 12 months
QUA-P0008	part 2565-A	optical sensor	$2,169	24	50	dual sourced	last-time-buy notice 12 months
QUA-P0009	part 4540-V	optical sensor	$117	11	100	dual sourced	no EOL commitment
QUA-P0010	part 8339-A	castor assembly	$2,162	15	200	single source	no EOL commitment
QUA-P0011	part 3392-K	optical sensor	$1,485	20	300	single source	EOL notice 6 months
QUA-P0012	part 6471-K	harness	$1,171	20	400	single source	EOL notice 6 months
QUA-P0013	part 7836-O	encoder	$293	15	200	single source	no EOL commitment
QUA-P0014	part 1973-O	encoder	$476	15	400	single source	no EOL commitment
QUA-P0015	part 5185-G	encoder	$186	14	400	single source	last-time-buy notice 12 months
QUA-P0016	part 4478-J	harness	$2,342	11	450	single source	EOL notice 6 months
QUA-P0017	part 7852-N	optical sensor	$1,415	13	100	single source	last-time-buy notice 12 months
QUA-P0018	part 4237-O	controller board	$1,878	21	450	qualification in progress	EOL notice 6 months
QUA-P0019	part 2191-P	encoder	$1,058	11	500	qualification in progress	no EOL commitment
QUA-P0020	part 5439-Y	encoder	$1,792	10	250	qualification in progress	no EOL commitment
QUA-P0021	part 9861-W	battery module	$214	11	350	single source	no EOL commitment
QUA-P0022	part 4027-A	gearbox	$397	16	400	dual sourced	no EOL commitment
QUA-P0023	part 6304-J	encoder	$688	17	350	single source	no EOL commitment
QUA-P0024	part 3053-D	harness	$2,219	14	600	qualification in progress	last-time-buy notice 12 months
QUA-P0025	part 5794-L	drive unit	$357	5	550	dual sourced	no EOL commitment
QUA-P0026	part 9887-E	encoder	$2,396	24	250	qualification in progress	last-time-buy notice 12 months
QUA-P0027	part 6169-V	gearbox	$1,525	25	100	single source	no EOL commitment
QUA-P0028	part 1310-F	controller board	$885	11	500	single source	no EOL commitment

Quarry Point price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
QUA-P0029	part 3305-J	optical sensor	$2,414	24	350	qualification in progress	EOL notice 6 months
QUA-P0030	part 6416-U	battery module	$1,343	23	100	qualification in progress	EOL notice 6 months
QUA-P0031	part 6792-R	drive unit	$2,351	17	200	single source	no EOL commitment
QUA-P0032	part 5200-P	gearbox	$2,041	20	450	single source	EOL notice 6 months
QUA-P0033	part 1306-A	gearbox	$1,181	24	250	dual sourced	EOL notice 6 months
QUA-P0034	part 9445-J	battery module	$698	20	200	qualification in progress	EOL notice 6 months
QUA-P0035	part 9573-C	gearbox	$1,900	22	600	qualification in progress	EOL notice 6 months
QUA-P0036	part 7388-U	optical sensor	$1,311	16	400	single source	last-time-buy notice 12 months
QUA-P0037	part 8141-L	harness	$531	23	550	qualification in progress	EOL notice 6 months
QUA-P0038	part 4963-V	harness	$1,250	14	600	single source	EOL notice 6 months
QUA-P0039	part 5611-Z	encoder	$734	4	450	single source	no EOL commitment
QUA-P0040	part 2398-W	encoder	$1,026	22	150	dual sourced	last-time-buy notice 12 months
QUA-P0041	part 4618-N	gearbox	$1,769	17	300	dual sourced	EOL notice 6 months
QUA-P0042	part 6774-E	harness	$92	16	450	single source	no EOL commitment
QUA-P0043	part 2187-W	optical sensor	$2,373	23	450	single source	last-time-buy notice 12 months
QUA-P0044	part 2753-B	drive unit	$200	5	550	dual sourced	EOL notice 6 months
QUA-P0045	part 7928-R	harness	$2,198	8	300	qualification in progress	last-time-buy notice 12 months
QUA-P0046	part 5097-N	castor assembly	$689	6	550	single source	no EOL commitment

6. Acceptance and change control - part 2 of 2

A further extract of the 6. Acceptance and change control appears here, taken in order from the point at which the previous part ended.

Definitions given once for the 6. Acceptance and change control are relied on again rather than restated, the compilation basis being identical.

Quarry Point reseller agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Quarry Point price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
QUA-P0047	part 2402-N	optical sensor	$2,436	24	400	single source	no EOL commitment
QUA-P0048	part 3426-G	controller board	$1,159	16	50	single source	no EOL commitment
QUA-P0049	part 4491-E	encoder	$1,645	7	300	dual sourced	EOL notice 6 months
QUA-P0050	part 3843-P	harness	$328	12	600	dual sourced	EOL notice 6 months
QUA-P0051	part 6380-R	harness	$1,234	9	300	dual sourced	last-time-buy notice 12 months
QUA-P0052	part 4387-L	optical sensor	$821	14	200	qualification in progress	EOL notice 6 months
QUA-P0053	part 9553-I	drive unit	$2,301	18	400	dual sourced	EOL notice 6 months
QUA-P0054	part 3266-E	harness	$1,971	8	450	single source	no EOL

Quarry Point price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
							commitment
QUA-P0055	part 5621-K	encoder	$2,276	12	150	single source	EOL notice 6 months
QUA-P0056	part 3824-L	controller board	$2,406	13	350	qualification in progress	EOL notice 6 months
QUA-P0057	part 5834-E	harness	$855	16	150	single source	EOL notice 6 months
QUA-P0058	part 3570-X	gearbox	$1,211	11	350	qualification in progress	EOL notice 6 months
QUA-P0059	part 1448-V	controller board	$1,638	4	500	dual sourced	last-time-buy notice 12 months
QUA-P0060	part 3576-B	gearbox	$695	23	300	qualification in progress	EOL notice 6 months
QUA-P0061	part 8923-G	harness	$2,083	14	250	single source	no EOL commitment
QUA-P0062	part 2201-L	optical sensor	$246	18	500	qualification in progress	no EOL commitment
QUA-P0063	part 1577-I	optical sensor	$1,222	24	200	dual sourced	last-time-buy notice 12 months
QUA-P0064	part 5873-E	gearbox	$556	4	300	dual sourced	EOL notice 6 months
QUA-P0065	part 1863-Q	harness	$1,115	8	50	qualification in progress	no EOL commitment
QUA-P0066	part 1077-W	battery module	$206	12	500	single source	last-time-buy notice 12 months
QUA-P0067	part 8164-U	gearbox	$2,377	11	150	qualification in progress	no EOL commitment
QUA-P0068	part 7951-Q	harness	$2,004	21	300	qualification in progress	no EOL commitment
QUA-P0069	part 7204-D	harness	$1,359	11	400	qualification in progress	EOL notice 6 months
QUA-P0070	part 6308-U	encoder	$1,404	21	50	qualification in progress	EOL notice 6 months
QUA-P0071	part 6530-O	battery module	$1,254	12	400	single source	last-time-buy notice 12 months
QUA-P0072	part 7554-O	gearbox	$260	21	50	single source	last-time-buy notice 12 months
QUA-P0073	part 2969-X	castor assembly	$1,558	21	100	dual sourced	no EOL commitment
QUA-P0074	part 6668-O	harness	$1,403	9	500	single source	no EOL commitment
QUA-P0075	part 9377-L	optical sensor	$1,204	8	300	qualification in progress	no EOL commitment
QUA-P0076	part 1617-L	harness	$2,250	9	200	dual sourced	EOL notice 6 months
QUA-P0077	part 6707-G	gearbox	$1,370	14	400	qualification in progress	EOL notice 6 months
QUA-P0078	part 7234-U	controller board	$1,763	9	350	qualification in progress	last-time-buy notice 12 months
QUA-P0079	part 9559-X	optical sensor	$626	18	400	qualification in progress	last-time-buy notice 12 months
QUA-P0080	part 4327-M	encoder	$1,154	15	450	qualification in progress	EOL notice 6 months
QUA-P0081	part 6355-V	castor assembly	$442	10	550	single source	last-time-buy notice 12 months
QUA-P0082	part 6490-I	castor assembly	$1,363	4	450	single source	last-time-buy notice 12 months
QUA-P0083	part 9787-M	optical sensor	$113	25	250	single source	no EOL commitment
QUA-P0084	part 5964-G	controller	$244	13	100	qualification in	EOL notice 6

Quarry Point price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
		board				progress	months
QUA-P0085	part 5246-B	encoder	$38	4	300	dual sourced	EOL notice 6 months
QUA-P0086	part 9507-S	castor assembly	$771	18	150	single source	EOL notice 6 months
QUA-P0087	part 6337-S	controller board	$842	20	300	dual sourced	last-time-buy notice 12 months
QUA-P0088	part 9042-F	drive unit	$2,135	18	250	qualification in progress	last-time-buy notice 12 months
QUA-P0089	part 6798-O	controller board	$157	18	100	qualification in progress	EOL notice 6 months
QUA-P0090	part 5943-U	controller board	$2,401	9	550	single source	no EOL commitment
QUA-P0091	part 4807-M	castor assembly	$1,003	7	450	single source	EOL notice 6 months
QUA-P0092	part 4169-S	harness	$2,069	4	350	qualification in progress	no EOL commitment

7. Data, intellectual property and licences

Quarry Point is not obliged, under Schedule 5, to accept that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. Negotiated position: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Site count matters here: Quarry Point has 1 site, and the Controls Integration Reseller Agreement treats each as a separate delivery point. Nothing in the Quarry Point negotiation history qualifies Article 9 (Customer Obligations), and a reviewer should not read the pre-signature drafts as doing so.

On a proper construction of Exhibit B, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Procedurally, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Quarry Point is a Alberta controls integration business with 1 site, the Controls Integration Reseller Agreement devolves this to the site manager. Quarry Point has taken the point up once since signature; the correspondence is filed against Article 10 (Change Control) and did not result in an amendment.

Quarry Point Automation Ltd undertakes that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. On timing, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Quarry Point treats the obligation as a site-level matter across its 1 site in Alberta, consistent with the Controls Integration Reseller Agreement. Quarry Point has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Under Article 15 (Limitation of Liability) of the Controls Integration Reseller Agreement, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. Materially, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. The Controls Integration Reseller Agreement reaches each of Quarry Point's 1 site separately, which is how a controls integration operator in Alberta administers it. The obligation as it applies to Quarry Point was tightened at signature, and Article 14 (Indemnities) carries the negotiated wording rather than the standard wording.

8. Indemnities and limitation of liability

Quarry Point has agreed, and the Provider has accepted, that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As between them, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 1 site in Alberta means Quarry Point applies the Controls Integration Reseller Agreement through its regional operations team rather than through head office. The Quarry Point file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Quarry Point is not obliged, under Exhibit C, to accept that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In application, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Quarry Point runs 1 site from Alberta in controls integration, so the Controls Integration Reseller Agreement is administered locally and this clause is applied per site. Nothing in the Quarry Point negotiation history qualifies Article 13 (Licences), and a reviewer should not read the pre-signature drafts as doing so.

Nothing in Schedule 3 entitles Quarry Point to assume that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In point of remedy, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Operating 1 site, Quarry Point applies the Controls Integration Reseller Agreement at the point of delivery, as controls integration practice requires. For a reseller of Quarry Point's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

Quarry Point retains the right, notwithstanding Article 13 (Licences), to require that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As drafted, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Quarry Point has 1 site, and the Controls Integration Reseller Agreement treats each as a separate delivery point. For a reseller of Quarry Point's size the clause is unremarkable, but Article 7 (Service Levels) is drafted more tightly here than in the Provider's standard form.

Quarry Point reseller agreement - Schedule 5 - Notices, Periods and Addressees

Quarry Point notice type	Subject	Period	Addressee	Method	Deemed given
QUA-N001	breach	85 days	General Counsel	courier only	on the second business day after despatch
QUA-N002	force majeure	10 days	designated account executive	email with acknowledgement	on despatch
QUA-N003	price adjustment	10 days	General Counsel	portal notice	on receipt
QUA-N004	termination for cause	45 days	designated account executive	courier only	on despatch
QUA-N005	assignment request	20 days	General Counsel	courier only	on despatch
QUA-N006	price adjustment	75 days	General Counsel	portal notice	on the second business day after despatch
QUA-N007	termination for cause	25 days	General Counsel	courier only	on the second business day after despatch
QUA-N008	change of control	15 days	designated account executive	email with acknowledgement	on the second business day after despatch
QUA-N009	renewal election	45 days	Chief Operating Officer	courier only	on receipt
QUA-N010	non-renewal	75 days	Chief Operating Officer	portal notice	on despatch
QUA-N011	non-renewal	85 days	Contracts Manager	portal notice	on receipt
QUA-N012	breach	35 days	Contracts Manager	portal notice	on the second business day after despatch
QUA-N013	change of control	65 days	designated account executive	portal notice	on the second business day after despatch
QUA-N014	assignment request	80 days	Contracts Manager	email with acknowledgement	on despatch
QUA-N015	change of control	30 days	General Counsel	email with acknowledgement	on receipt
QUA-N016	service credit claim	35 days	Contracts Manager	courier and email	on receipt
QUA-N017	service credit claim	65 days	designated account executive	portal notice	on despatch
QUA-N018	assignment request	35 days	Chief Operating Officer	portal notice	on the second business day after

Quarry Point notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
QUA-N019	termination for cause	90 days	General Counsel	portal notice	on despatch
QUA-N020	renewal election	75 days	designated account executive	courier only	on receipt
QUA-N021	renewal election	30 days	General Counsel	courier and email	on despatch
QUA-N022	assignment request	5 days	General Counsel	portal notice	on the second business day after despatch
QUA-N023	renewal election	35 days	designated account executive	courier only	on the second business day after despatch
QUA-N024	service credit claim	10 days	General Counsel	email with acknowledgement	on the second business day after despatch
QUA-N025	renewal election	55 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
QUA-N026	breach	5 days	designated account executive	email with acknowledgement	on despatch
QUA-N027	non-renewal	25 days	designated account executive	portal notice	on receipt
QUA-N028	termination for cause	80 days	designated account executive	courier and email	on the second business day after despatch
QUA-N029	breach	60 days	General Counsel	portal notice	on the second business day after despatch
QUA-N030	force majeure	90 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
QUA-N031	non-renewal	70 days	designated account executive	courier only	on receipt
QUA-N032	price adjustment	60 days	Contracts Manager	courier only	on despatch
QUA-N033	service credit claim	30 days	designated account executive	email with acknowledgement	on receipt
QUA-N034	service credit claim	75 days	General Counsel	courier only	on despatch
QUA-N035	change of control	30 days	designated account executive	portal notice	on despatch
QUA-N036	breach	15 days	Contracts Manager	courier only	on the second business day after despatch
QUA-N037	price adjustment	10 days	Chief Operating Officer	courier and email	on receipt
QUA-N038	price adjustment	35 days	designated account executive	portal notice	on despatch
QUA-N039	assignment request	10 days	Contracts Manager	courier and email	on receipt
QUA-N040	non-renewal	40 days	Contracts Manager	email with acknowledgement	on despatch
QUA-N041	assignment request	60 days	Contracts Manager	portal notice	on the second business day after despatch
QUA-N042	breach	40 days	Contracts Manager	portal notice	on receipt
QUA-N043	price adjustment	55 days	General Counsel	portal notice	on the second business day after despatch
QUA-N044	service credit claim	55 days	General Counsel	email with acknowledgement	on receipt
QUA-N045	breach	10 days	General Counsel	courier and email	on receipt
QUA-N046	renewal election	65 days	Contracts Manager	portal notice	on the second business day after despatch
QUA-N047	service credit claim	80 days	designated account executive	email with acknowledgement	on despatch
QUA-N048	force majeure	55 days	General Counsel	email with acknowledgement	on the second business day after despatch
QUA-N049	termination for cause	60 days	Chief Operating Officer	courier and email	on receipt
QUA-N050	assignment request	5 days	designated account	portal notice	on receipt

Quarry Point notice type	Subject	Period	Addressee	Method	Deemed given
			executive		
QUA-N051	renewal election	50 days	General Counsel	portal notice	on the second business day after despatch
QUA-N052	non-renewal	25 days	designated account executive	email with acknowledgement	on receipt
QUA-N053	change of control	25 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
QUA-N054	change of control	50 days	Contracts Manager	courier and email	on despatch
QUA-N055	price adjustment	70 days	designated account executive	portal notice	on receipt
QUA-N056	change of control	90 days	General Counsel	courier only	on despatch
QUA-N057	change of control	85 days	General Counsel	email with acknowledgement	on despatch
QUA-N058	change of control	10 days	Contracts Manager	courier and email	on the second business day after despatch
QUA-N059	price adjustment	40 days	Chief Operating Officer	courier only	on despatch
QUA-N060	change of control	5 days	designated account executive	courier only	on receipt
QUA-N061	assignment request	15 days	Contracts Manager	portal notice	on receipt
QUA-N062	force majeure	20 days	Chief Operating Officer	email with acknowledgement	on despatch
QUA-N063	termination for cause	25 days	General Counsel	courier and email	on receipt
QUA-N064	renewal election	10 days	designated account executive	courier and email	on despatch
QUA-N065	price adjustment	75 days	Chief Operating Officer	courier only	on the second business day after despatch
QUA-N066	termination for cause	90 days	General Counsel	portal notice	on the second business day after despatch
QUA-N067	termination for cause	30 days	designated account executive	courier and email	on despatch
QUA-N068	breach	25 days	Contracts Manager	courier only	on receipt
QUA-N069	termination for cause	60 days	Chief Operating Officer	courier only	on receipt
QUA-N070	change of control	80 days	Contracts Manager	courier only	on the second business day after despatch
QUA-N071	breach	50 days	Chief Operating Officer	portal notice	on despatch
QUA-N072	non-renewal	35 days	Chief Operating Officer	courier and email	on despatch
QUA-N073	termination for cause	10 days	designated account executive	courier only	on the second business day after despatch
QUA-N074	force majeure	65 days	designated account executive	courier only	on the second business day after despatch
QUA-N075	breach	25 days	Chief Operating Officer	courier and email	on despatch
QUA-N076	non-renewal	5 days	designated account executive	courier only	on the second business day after despatch
QUA-N077	breach	25 days	General Counsel	courier only	on receipt
QUA-N078	price adjustment	55 days	Chief Operating Officer	courier only	on receipt

9. Term, termination and transition

Quarry Point retains the right, notwithstanding Article 14 (Indemnities), to require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As drafted, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Operating 1 site, Quarry Point applies the Controls Integration Reseller Agreement at the point

of delivery, as controls integration practice requires. Because Quarry Point operates in controls integration, the practical burden of this clause falls on its Alberta operation, and Article 5 (Delivery and Title) governs how it is measured.

Quarry Point retains the right, notwithstanding Article 15 (Limitation of Liability), to require that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On the operative wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Controls Integration Reseller Agreement reaches each of Quarry Point's 1 site separately, which is how a controls integration operator in Alberta administers it. The Quarry Point relationship is managed against Article 16 (Term and Termination) at each quarterly review, and any variance is minuted there rather than in the Order.

Nothing in Exhibit D entitles Quarry Point to assume that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As a remedy, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Quarry Point runs 1 site from Alberta in controls integration, so the Controls Integration Reseller Agreement is administered locally and this clause is applied per site. Notices under Article 13 (Licences) go to the contracting entity named in the recital and not to any Quarry Point affiliate that may operate a site.

Except as Article 12 (Intellectual Property) permits, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Practically, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. The Controls Integration Reseller Agreement reaches each of Quarry Point's 1 site separately, which is how a controls integration operator in Alberta administers it. Quarry Point has taken the point up once since signature; the correspondence is filed against Article 4 (Orders and Quantities) and did not result in an amendment.

10. Assignment, notices and general

Article 3.1 of this instrument records a departure from the Provider's standard position: the Provider grants exclusive distribution rights in the Territory, and will not appoint another reseller or sell direct into it during the Initial Term. The provision was negotiated at signature and is not qualified elsewhere in the Controls Integration Reseller Agreement; a reader reconciling this instrument against the Provider's standard terms should treat Article 3.1 as governing.

Quarry Point bears the risk that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. On timing, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. This bites at Quarry Point's 1 site, since a controls integration operator administers the Controls Integration Reseller Agreement where the units work. Quarry Point has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

The Provider has undertaken to Quarry Point that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On this point, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Because Quarry Point is a Alberta controls integration business with 1 site, the Controls Integration Reseller Agreement devolves this to the site manager. Where Quarry Point has raised a query the Provider has answered by reference to Article 19 (Confidentiality), and the exchange is on the contract file.

Quarry Point has agreed, and the Provider has accepted, that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In substance, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Alberta is where Quarry Point runs controls integration operations across 1 site, and the Controls Integration Reseller Agreement follows that footprint. The obligation as it applies to Quarry Point was tightened at signature, and Article 12 (Intellectual Property) carries the negotiated wording rather than the standard wording.

For the purposes of the Controls Integration Reseller Agreement, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On any reading, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended

at signature to make that plain. The Controls Integration Reseller Agreement reaches each of Quarry Point's 1 site separately, which is how a controls integration operator in Alberta administers it. Because Quarry Point operates in controls integration, the practical burden of this clause falls on its Alberta operation, and Article 2 (Definitions) governs how it is measured.

Quarry Point Automation Ltd has notified the Provider that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Practically, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Quarry Point runs 1 site from Alberta in controls integration, so the Controls Integration Reseller Agreement is administered locally and this clause is applied per site. Quarry Point has taken the point up once since signature; the correspondence is filed against Article 13 (Licences) and did not result in an amendment.

Quarry Point acknowledges that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Quarry Point treats the obligation as a site-level matter across its 1 site in Alberta, consistent with the Controls Integration Reseller Agreement. The Quarry Point file records the position as at the last amendment, and Article 12 (Intellectual Property) is the reference a reviewer should cite when raising it.